

1 ENGROSSED SENATE
2 BILL NO. 1344

By: Rosino, Mann, and Hicks of
the Senate

3 and

4 Stinson of the House

5
6 An Act relating to prescription drugs; creating the
7 Insulin Access and Affordability Program for
8 specified purposes; directing the State Department of
9 Health to provide certain financial support;
10 requiring certain agreement with nonprofit
11 pharmaceutical manufacturer; describing agreement;
12 requiring certain annual reporting; providing for
13 codification; providing an effective date; and
14 declaring an emergency.

15
16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1-271 of Title 63, unless there
19 is created a duplication in numbering, reads as follows:

20 A. There is hereby created the Insulin Access and Affordability
21 Program, which shall be administered by the State Department of
22 Health for the purpose of increasing patient access to affordable
23 insulin in this state, reducing prescription drug costs for
24 consumers and payors, bolstering American manufacturing of
25 pharmaceuticals, increasing marketplace competition, and addressing
26 shortages in the market for generic insulin.

27 B. The Department shall, with funds appropriated by the
28 Legislature, provide financial support to one or more pharmaceutical

1 manufacturers that manufacture, or are currently developing, a fast-
2 acting biosimilar insulin. Each such pharmaceutical manufacturer
3 shall manufacture the fast-acting biosimilar insulin in the United
4 States.

5 C. Prior to disbursement of any funds, the Department shall
6 enter into a memorandum of understanding (MOU) with the
7 pharmaceutical manufacturer or manufacturers, and each manufacturer
8 shall demonstrate a match of non-state funds equal to the amount
9 received by the manufacturer under the Insulin Access and
10 Affordability Program. The MOU shall include, but not be limited
11 to:

12 1. A commitment by the manufacturer to produce a fast-acting
13 biosimilar insulin at a low net cost without rebates, except as
14 required by law, within a time frame agreed upon between the
15 Department and the manufacturer;

16 2. A commitment by the manufacturer to manufacture fast-acting
17 biosimilar insulin in the United States;

18 3. Estimated savings from the purchase of low-cost, fast-acting
19 biosimilar insulin including, but not limited to, the estimated
20 savings to residents of this state and public and private payors
21 from the availability of low-cost, fast-acting biosimilar insulin;
22 and

23 4. Provisions for the repayment of the funds provided under the
24 Insulin Access and Affordability Program if the manufacturer fails

1 to produce and distribute a low-cost, fast-acting biosimilar insulin
2 or otherwise fails to substantially comply with the requirements of
3 this section or the MOU.

4 D. The pharmaceutical manufacturer or manufacturers shall
5 submit reports annually to the Department on the development,
6 production, and distribution, as applicable, of the fast-acting
7 biosimilar insulin in a manner prescribed by the Department. The
8 Department shall compile the reports into a single report and shall
9 annually submit such report electronically to the Governor, the
10 President Pro Tempore of the Senate, and the Speaker of the House of
11 Representatives.

12 SECTION 2. This act shall become effective July 1, 2026.

13 SECTION 3. It being immediately necessary for the preservation
14 of the public peace, health or safety, an emergency is hereby
15 declared to exist, by reason whereof this act shall take effect and
16 be in full force from and after its passage and approval.

1 Passed the Senate the 24th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives